

HOUSE No. 1741

The Commonwealth of Massachusetts

PRESENTED BY:

Christopher Hendricks

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to amend Section 35 of M.G.L. Ch. 123.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Christopher Hendricks</i>	<i>11th Bristol</i>	<i>1/8/2025</i>

HOUSE No. 1741

By Representative Hendricks of New Bedford, a petition (accompanied by bill, House, No. 1741) of Christopher Hendricks relative to orders of commitment of persons believed to have an alcohol or substance use disorder. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to amend Section 35 of M.G.L. Ch. 123.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 35 of Massachusetts General Law Chapter 123 shall hereby be
2 amended by striking the current language, "Any police officer, physician, spouse, blood relative,
3 guardian or court official may petition in writing any district court or any division of the juvenile
4 court department for an order of commitment of a person whom he has reason to believe has an
5 alcohol or substance use disorder;" and inserting in place thereof the following language: "Any
6 police officer, physician, spouse, blood relative, guardian, court official, Licensed Alcohol and
7 Drug Counselor (I or II), or Licensed Social Worker may petition in writing any district court, or
8 any division of the juvenile court department for an order of commitment of a person whom they
9 have reason to believe has an alcohol or substance use disorder."

10 SECTION 2. This act shall take effect upon passage.